Financial Statement

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 – RULE **6.06(5)**

Please type or print clearly and mark [**X**] all boxes that apply. Attach extra pages if you need more space to answer any question/s.

Filed in:

☒ Federal Circuit and Family Court of Australia

☐ Family Court of Western Australia

☐ Other (specify) _____

Filed on behalf of:

Full name: Stephen Christopher Cooke

Client ID _____ _____

File number _____

Filed at NEWCASTLE

Filed on

Court location

Next Court date (if known)_____ _____

This form is to be used by a party to a financial proceeding, such as property settlement, maintenance, child support or financial enforcement.

Part A About you

1 What is your family name as used now?

Cooke

Given names?

Stephen Christopher

213 Morgan Street

Merewether State NSW Postcode 2291

Please tick as applicable – only one box should be selected

AFFIDAVIT – for financial proceedings:

I swear* / affirm* that:

(a) I have read Rule 6.06 and I am aware that by law I have an obligation to make a full and frank disclosure of my financial circumstances to the Court and each other party. In particular, I have disclosed in this document or in an affidavit filed by me or on my behalf under Rule 6.06(6), all matters I am required to disclose under Rule 6.06.

(b) The information in the financial statement and any attachments to it which are within my personal knowledge are true. Where I have given an estimate in this financial statement, it is based on my knowledge and is given in good faith. All other information given in this financial statement and any attachments is true to the best of my knowledge, information and belief.

(c) I have no income, property or financial resources other than as set out in this document or any affidavit filed by me under Rule 6.06(6).

Your signature	Newcastle /12/2023 Place Date
Before me (signature of witness)	Full name of witness (please print)

☐ Justice of the Peace
☐ Notary public
☒ Lawyer
☐ Authorised Staff Member of the Court

* delete whichever is inapplicable

This financial statement was prepared by:
☐ the applicant ☐ the respondent ☒ lawyer

Samantha Jane Miller

CLA7584701

PRINT NAME AND LAWYER'S CODE

Part B Financial summary

IMPORTANT: As you complete the rest of this form you will be asked to transfer the totals for Items D, G, I-L to this summary

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A	Your total average weekly income. (THIS IS THE FIGURE AT ITEM 16)	**$**	NIL
B	Your total personal expenditure. (THIS IS THE FIGURE AT ITEM 33)	**$**	NIL
C	Total value of property owned by you. (THIS IS THE FIGURE AT ITEM 44)	**$**	1,264,293
D	Total gross value of your superannuation. (THIS IS THE FIGURE AT ITEM 45)	**$**	150,340
E	Total of your liabilities. (THIS IS THE FIGURE AT ITEM 55)	**$**	562,397
F	Total of your financial resources. (THIS IS THE FIGURE AT ITEM 58)	**$**	NIL

Part C Your employment details

3 What is your current occupation?

Parent and Homemaker

4 Are you employed?

☒ No. Go to Part D

☐ Yes. Give details

☐ full time ☐ permanently ☐ on contract

☐ part time ☐ casually

5 What is the name of your employer?

6 What is the address of your employer?

STATE POSTCODE PHONE

7 How long have you been employed at this place? YEARS MONTHS DAYS

8 Are you self-employed?

☒ **No**

☐ **Yes** **STATE THE NAME OF THE BUSINESS / COMPANY / PARTNERSHIP / TRUST**

Part D Your income

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE '**NIL**'. IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER '**E**' BEFORE THE AMOUNT STATED

			AVERAGE WEEKLY AMOUNT
9	Total salary or wages before tax		$ NIL
10	Investment income (before tax)	INCOME TYPE (eg. rent, interest, dividend) PAID BY (bank, mortgagor, company, tenant)	$ NIL
		INCOME TYPE (eg. rent, interest, dividend) PAID BY (bank, mortgagor, company, tenant)	$ NIL
11	Income from business/ partnership/ company/ trust	NAME OF BUSINESS/ PARTNERSHIP/ COMPANY/ TRUST TYPE OF BUSINESS ADDRESS OF BUSINESS/ PARTNERSHIP/ COMPANY/ TRUST State Postcode	$ NIL
12	Government benefits	TYPE OF BENEFIT	$ NIL
		TYPE OF BENEFIT	$ NIL
13	Maintenance/ child support	PAID BY FOR THE BENEFIT OF **$ REQUIRED TO BE PAID** $ NIL ACTUALLY RECEIVED $ NIL	
		PAID BY FOR THE BENEFIT OF **$ REQUIRED TO BE PAID** $ NIL ACTUALLY RECEIVED $ NIL	
14	Benefits from employment/ business	TYPE OF BENEFIT	$ NIL
		TYPE OF BENEFIT	$ NIL
15	Other income	PAID BY TYPE OF BENEFIT	$ NIL
16		**TOTAL AVERAGE WEEKLY INCOME** **WRITE THE ITEM 16 TOTAL AT ITEM 2A ON PAGE 2 OF THIS FORM**	$ NIL

Part E Other income earners in your household

Give the name, age and relationship to you and gross income of each other occupant of your household

17		AGE	RELATIONSHIP TO YOU	AVERAGE WEEKLY AMOUNT
	NAME Heather Anne Cooke	45	Wife / Respondent	$ E6,806 (Subject to change after receipt of financial disclosure from the Respondent)
	~~NAME~~	~~—~~	~~—~~	~~$~~
	~~NAME~~	~~—~~	~~—~~	~~$~~

Part F Expenses paid by others for your benefit

18			
	PAID BY: Respondent	TYPE OF EXPENSE: All	$
	PAID BY	TYPE OF EXPENSE	$
	PAID BY	TYPE OF EXPENSE	$

Part G Personal expenditure - TBC

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE '**NIL**'. IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER '**E**' BEFORE THE AMOUNT STATED

			AVERAGE WEEKLY AMOUNT
19	Total income tax		$ NIL
20	Superannuation	PLAN NAME Future Super	$ NIL
21	Mortgage payments/ rent	NAME OF LENDER/LANDLORD	$ NIL
22	Rates, unit levies		$ NIL
23	Other mortgage payment	NAME OF LENDER ADDRESS OF PROPERTY	$ NIL
24	Other rates, unit levies		$ NIL
25	Life insurance premiums	TYPE OF POLICY POLICY NO. NAME OF INSURER	$ NIL
		TYPE OF POLICY POLICY NO. NAME OF INSURER	$ NIL

Commented [A1]: Does Stephen pay the quarterly strata fees of $1,802?

PERSONAL EXPENDITURE - CONTINUED

			AVERAGE WEEKLY AMOUNT
26	Other insurance premiums	TYPE OF POLICY POLICY NO: NAME OF INSURER	$ NIL
		TYPE OF POLICY POLICY NO: NAME OF INSURER	$ NIL
		TYPE OF POLICY POLICY NO: NAME OF INSURER	$ NIL
27	Motor vehicle registration	REG. NO: VEHICLE MAKE	$ NIL
28	Hire purchase/ lease agreements	DESCRIBE THE PROPERTY NAME OF COMPANY/ PERSON	$ NIL
29	Loan repayments	NAME OF LENDER TYPE OF LOAN	$ NIL
30	Credit card payments	CARD TYPE Minimum Payment $ NAME OF COMPANY	$ NIL
		CARD TYPE Minimum Payment $ NAME OF COMPANY	$ NIL
			ACTUAL PAYMENT
31	Maintenance payments/ child support	PAID FOR THE BENEFIT OF	$ NIL
		☐ assessment ☐ agreement ☐ order AMOUNT OF ASSESSMENT, AGREEMENT OR ORDER $	
32	Total of all other expenditure		$ NIL
33	**TOTAL PERSONAL EXPENDITURE** **WRITE THIS ITEM 33 TOTAL AT ITEM 2B ON PAGE 2 OF THIS FORM**		$ NIL

Part H Personal expenses you pay for the benefit of others

34 State which of the expenses in Part G are paid by you for other persons

NAME OF PERSON GIVE DETAILS	$ NIL
NAME OF PERSON GIVE DETAILS	$ NIL

Part I Property owned by you

CURRENT VALUE OF YOUR SHARE

35 Home

FULL NAME OF THE REGISTERED OWNERS Stephen Christopher Cooke and Heather Anne Cooke (as Joint Tenants) PROPERTY ADDRESS Unit 1/213 Morgan Street, Merewether NSW 2291 YOUR % SHARE 50	$ E800,000

36 ~~Other real estate~~

~~PROPERTY ADDRESS~~ ~~REGISTERED OWNERS:~~ ~~YOUR % SHARE~~	~~$~~
~~PROPERTY ADDRESS~~ ~~REGISTERED OWNERS:~~ ~~YOUR % SHARE~~	~~$~~

37 Funds in banks, building societies, credit unions or other financial institutions

NAME AND BRANCH BSB Joint WBC Offset Account ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke, Account ending #3193 CURRENT BALANCE $	$ 3,522
NAME AND BRANCH BSB Joint WBC Choice Account ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke, Account ending #5055 CURRENT BALANCE $	$ 0
NAME AND BRANCH BSB Joint WBC Offset Account ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke, Account ending #5063	$ 0

NAME AND BRANCH BSB Joint WBC Offset Account	$0
ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke, Account ending #2594	

38 Investments

NAME AND TYPE OF INVESTMENT Praemium Prae Investment Portfolio as at 27.11.2023 (ID: SMA00418788)	$ 148,989
FULL NAMES OF ALL OWNERS Stephen Christopher Cooke	
NUMBER OF SHARES HELD YOUR % SHARE 100	
NAME AND TYPE OF INVESTMENT	$ NIL
FULL NAMES OF ALL OWNERS	
NUMBER OF SHARES HELD YOUR % SHARE	

PROPERTY OWNED BY YOU - CONTINUED

CURRENT VALUE OF YOUR SHARE

39 Life Insurance policies

POLICY TYPE POLICY NO.	$ NIL
NAME OF INSURANCE COMPANY	
FULL NAMES OF ALL OWNERS YOUR % SHARE	

40 Motor vehicle

YEAR MAKE	$ NIL
MODEL REGISTRATION NO.	
FULL NAME OF REGISTERED OWNER/S YOUR % SHARE	
YEAR MAKE	$ NIL
MODEL REGISTRATION NO.	
FULL NAME OF REGISTERED OWNER/S YOUR % SHARE	

41 Interest in a business including a business operated by you as a sole trader, in a partnership or through a proprietary company or a trust

NAME OF BUSINESS

ADDRESS OF BUSINESS

YOUR % SHARE

Business type (Mark [X] which applies)

_ Sole trader _ Partnership _ Proprietary company / trust

$ NIL

42 Household contents

$ Nominal

43 Other personal property

SPECIFY

YOUR % SHARE

$ NIL

44 **TOTAL VALUE OF PROPERTY OWNED BY YOU**
WRITE THIS ITEM 44 TOTAL AT ITEM 2C ON PAGE 2 OF THIS FORM

$ 1,264,293

Part J Superannuation

You must attach a completed Superannuation Information Form for each superannuation interest if you are seeking an order for property settlement.

GROSS VALUE

45 Interest in superannuation

NAME OF SUPERANNUATION FUND
Future Super as at 15.11.2023

$150,340

TYPE OF INTEREST

☒ Accumulation interest
☐ Partially vested accumulation interest
☐ Defined benefit interest
☐ Self managed fund
☐ Eligible annuity
☐ Retirement saving account
☐ Small superannuation account
☐ Percentage only interest
☐ Approved deposit fund

NAME OF SUPERANNUATION FUND

$ NIL

TYPE OF INTEREST

☐ Accumulation interest
☐ Partially vested accumulation interest
☐ Retirement saving account
☐ Small superannuation account

☐ Defined benefit interest ☐ Percentage only interest

☐ Self managed fund ☐ Approved deposit fund

☐ Eligible annuity

NAME OF SUPERANNUATION FUND 3

$ NIL

TYPE OF INTEREST

☐ Accumulation interest ☐ Retirement saving account

☐ Partially vested accumulation interest ☐ Small superannuation account

☐ Defined benefit interest ☐ Percentage only interest

☐ Self managed fund ☐ Approved deposit fund

☐ Eligible annuity

TOTAL GROSS VALUE OF YOUR SUPERANNUATION
WRITE THIS ITEM 45 TOTAL AT ITEM 2D ON PAGE 2 OF THIS FORM

$150,340

Part K Your liabilities

AMOUNT OF YOUR SHARE

46 Home mortgage/s

FULL NAMES OF ALL BORROWERS Stephen Christopher Cooke and Heather Anne Cooke 3 x separate Westpac Mortgage over Merewether property	$ 524,053
YOUR % SHARE 50	

AMOUNT OF YOUR SHARE

47 Other Mortgages

FULL NAMES OF ALL BORROWERS Stephen Christopher Cooke and Heather Anne Cooke Westpac Mortgage over Southport Property, Account ending #7778	$ 124,882
YOUR % SHARE 50	

48 Total income tax assessed and unpaid for the last financial year Date due: / / — $ NIL

49 Total income tax assessed and unpaid in previous financial years — $ NIL

AMOUNT OF YOUR SHARE

50 Loans

NAME OF LENDER	$ NIL
TYPE OF LOAN _ Overdraft _ other (specify) _ personal loan _	
FULL NAMES OF ALL BORROWERS	
YOUR % SHARE	

51 Credit/ charge cards

SPECIFY CARD PROVIDER AND TYPE	$ NIL
SPECIFY CARD PROVIDER AND TYPE	$ NIL

AMOUNT OF YOUR SHARE

52 Hire purchase/ lease

NAME OF LENDER	$ NIL
Date of final payment _/_/_	
FULL NAMES OF ALL PERSONS NAMED IN THE AGREEMENT	
YOUR % SHARE	
NAME OF LENDER	$ NIL
Date of final payment _/_/_	

FULL NAMES OF ALL PERSONS NAMED IN THE AGREEMENT
YOUR % SHARE

YOUR LIABILITIES - CONTINUED

AMOUNT OF YOUR SHARE

53 Other personal liabilities

SPECIFY	$ NIL
FULL NAME OF ANY OTHER LIABLE PERSON	
YOUR % SHARE	

AMOUNT OF YOUR SHARE

54 Other personal business liabilities

SPECIFY	$ NIL
FULL NAME OF ANY OTHER LIABLE PERSON	
YOUR % SHARE	

55 **TOTAL LIABILITIES**
WRITE THIS ITEM 55 TOTAL AT ITEM 2E ON PAGE 2 OF THIS FORM $ 562,397

Part L Financial resources

56 Interest in any trust or deceased estate

SPECIFY	$ NIL

57 Other financial resources

SPECIFY	$ NIL

58 **TOTAL FINANCIAL RESOURCES**
WRITE THIS ITEM 58 TOTAL AT ITEM 2F ON PAGE 2 OF THIS FORM $ NIL

Part M About disposal of property

59 Specify property falling within Rule 6.06(3)(g) disposed of by you or on your behalf in the 12 months before separation and since your separation

Item	How disposed of	Value/ amount received
37 – Account ending #2594	Unilaterally Withdrawn by the Respondent	$29,750
37 – Account ending #5063	Unilaterally Withdrawn by the Respondent	$173,000
47 – Account ending #7778	Unilaterally Withdrawn by the Respondent	$166,037

Part N Orders for maintenance, child support, financial enforcement

Complete and attach this page only if the application is for orders for maintenance for yourself, the other party or your children or child support or financial enforcement

60 Average weekly expenses

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE '**NIL**'. IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER '**E**' BEFORE THE AMOUNT STATED

ITEM	**TOTAL**	**FOR YOU**	**FOR CHILDREN** (IF APPLICABLE)	**OTHER ADULTS** (IF APPLICABLE)
Food	$ 300	$	$	$
Household supplies	$ 30	$	$	$
House repairs	$ E38	$	$	$
Gas	$ E60	$	$	$
Electricity	$ E51	$	$	$
Internet	$ 28	$	$	$
Telephone	$ 16	$	$	$
Motor vehicle				
petrol	$ E60	$ E60	$	$
maintenance	$ E50	$ E50	$	$
Fares/ car parking	$ 30	$ E30	$	$
Clothing and shoes	$ 130	$ 70	$ 60	$
Children's activities	$ E90	$	$ E90	$
Child minding	$ NIL	$	$	$
Medical, dental and optical (not including health insurance premiums)	$ 76	$ 58	$ 18	$
Entertainment/ hobbies	$ 40	$	$	$
Holidays	$ 162	$ 81	$ 81	$
Education expenses, including fees and levies	$ E15	$	$ 15	$
Chemist/ pharmaceutical	$ 26	$ 17	$ 9	$
Gardening/ lawn mowing	$ 10	$ 10	$	$
Cleaning (house/ pool)	$ NIL	$	$	$
Repairs – furnishings and appliances	$ 100	$	$	$
Dry cleaning	$ NIL	$	$	$
Books and magazines	$ 10	$	$	$
Gifts	$ 50	$	$	$
Hairdressing, toiletries	$ 50	$	$	$
Other necessary commitments (specify)	$ 35	$	$	$
TOTAL	**$ 1,457**	**$ 376**	**$ 273**	**$**

Part O Additional information

You should set out here or on an additional page any item that you may not be able to include in any section of the document. Please include the Part and paragraph number that it continues from.

This application was prepared by ☐ applicant/s ☐ respondent/s ☒ lawyer

Samantha Jane Miller

CLA7584701

PRINT NAME AND LAWYER'S CODE